

Nagendra Singh Gautam & 2 Others v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 27 May 2026 · Writ - C No. 16381 of 2026 · **Companion writ detached to Single Judge; listed 3 July 2026 as fresh**

HEADNOTE

On a writ claiming connection charges at Rs. 35 per square foot rather than the later Rs. 70 rate, the Division Bench held that a companion writ by the supply company challenging a Permanent Lok Adalat award could not be tagged because it was pending before a learned Single Judge, and directed that file be detached and placed before that Judge. Counsel for the company invoked the U.P. Electricity Supply Code, 2005, but could not identify the clause from the 2025 publication. The company is to show it informed the petitioners of the connection charge after 4 February 2024 and before February 2025; if it does, the enhanced rate applies, otherwise only the earlier rate. Listed 3 July 2026 as fresh.

FACTUAL SUMMARY

Nagendra Singh Gautam and two others applied to Kanpur Electricity Supply Company for a connection on 4 September 2024, when charges were Rs. 35 per square foot. The rate rose to Rs. 70 in February 2025. They say the company sat on the application and then demanded the enhanced rate. The company's writ to quash a Permanent Lok Adalat, Kanpur Nagar award of 19 May 2025 (case no. 5 of 2025) was dismissed for default, restored, and is pending before a Single Judge.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::procedural-listing

Detachment of companion writ; listing; which connection-charge rate pending proof of notice

HOLDING

Writ C No. 27437 of 2025 cannot be tagged with this Division Bench petition because it is before the learned Single Judge; it is detached and to be placed before that Judge in the usual course. The supply company is to demonstrate that it informed the petitioners of the connection charge after 4 February 2024 and before February 2025. If it does, the petitioners are liable for the enhanced rate; on omission, they can be asked to pay only the earlier rate. Listed 3 July 2026 as fresh. No clause of the Supply Code was identified or construed. ¶ 2, 4-5

FLAG Listing/interlocutory only. Counsel relied on a provision of the Electricity Supply Code, 2005 but could not point it out from the 2025 publication; no clause applied. The Court's 4 February 2024 notice window is as stated in the order.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS ARE LIABLE FOR RS. 35 OR RS. 70 PER SQUARE FOOT

Framed conditionally: enhanced rate if the company proves it informed the charge after 4 February 2024 and before February 2025; otherwise the earlier rate. No finding. ¶ 3-4

NOT DECIDED — WHICH CLAUSE OF THE ELECTRICITY SUPPLY CODE, 2005 GOVERNS CONNECTION CHARGES

Invoked by the supply company; counsel unable to identify the clause from the 2025 publication. ¶ 4

NOT DECIDED — CHALLENGE TO THE PERMANENT LOK ADALAT AWARD DATED 19 MAY 2025 IN THE COMPANION WRIT

Writ C No. 27437 of 2025 detached and sent to the learned Single Judge; not heard here. ¶ 2

